

Dharmendra v. Manoj Kumar Agrawal, Executive Engineer

Allahabad High Court · Single Judge · 16 September 2019 · Contempt Application (Civil) No. 5156 of 2019 · **Contempt disposed of after finding substantial compliance; notices discharged.**

HEADNOTE

In civil contempt alleging that the Executive Engineer had billed the consumer without the clause 6.5 physical verification directed by the writ court, the High Court treated the Engineer's subsequent order as substantial compliance, disposed of the contempt, discharged notices, and left any challenge to that order to the appropriate forum. The correctness of the bill was not decided.

FACTUAL SUMMARY

Dharmendra filed a civil contempt against Manoj Kumar Agrawal, Executive Engineer, alleging that despite a writ-court order the licensee had not ensured actual physical verification under clause 6.5 of the U.P. Electricity Supply Code, 2005, and had raised a bill arbitrarily. On 13 August 2019 the Court called for instructions. Opposite counsel then placed an order dated 22 July 2019 of the Executive Engineer, Purvanchal Vidyut Vitran Nigam Ltd.-III, Azamgarh, and submitted that the writ order had been complied with.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

contempt of writ direction to verify under clause 6.5

HOLDING

Where contempt was alleged on the footing that the licensee had billed without the clause 6.5 physical verification directed by the writ court, production of the Executive Engineer's subsequent order was treated as substantial compliance. The contempt was disposed of and notices discharged. Any challenge to that order was left to the appropriate court or forum; the Court did not decide the bill or whether verification had in fact been done. ¶ 2

PRINCIPLE TAGS

contempt-of-6.5-writ-does-not-redecide-bill In civil contempt alleging that the Executive Engineer had billed the consumer without the clause 6.5 physical verification directed by the writ court, the High Court treated the Engineer's subsequent order as substantial compliance, disposed of the contempt, discharged notices ¶ 2

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER CLAUSE 6.5 PHYSICAL VERIFICATION WAS IN FACT CARRIED OUT, AND THE VALIDITY OF THE EXECUTIVE ENGINEER'S ORDER DATED 22.07.2019 AND THE BILL

Applicant left to assail that order before the appropriate court or forum. ¶ 2